

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1428

BY FINANCE COMMITTEE

AN ACT

RELATING TO THE APPROPRIATION TO THE DEPARTMENT OF HEALTH AND WELFARE; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISION OF EARLY LEARNING AND DEVELOPMENT FOR FISCAL YEAR 2027; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISION OF YOUTH SAFETY AND PERMANENCY FOR FISCAL YEAR 2027; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISION OF FAMILY AND COMMUNITY PARTNERSHIPS FOR FISCAL YEAR 2027; AUTHORIZING ADDITIONAL FULL-TIME EQUIVALENT POSITIONS; PROVIDING REAPPROPRIATION AUTHORITY FOR THE IDAHO CHILD CARE PROGRAM; REQUIRING A REPORT FOR THE IDAHO HOME VISITING PROGRAM; DIRECTING THE USE OF FUNDS FOR THE IDAHO CHILD CARE PROGRAM FOR PROGRAM CAPACITY; PROVIDING A TRANSFER LIMITATION EXEMPTION FOR THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISION OF EARLY LEARNING AND DEVELOPMENT; PROVIDING A TRANSFER LIMITATION EXEMPTION FOR THE DEPARTMENT OF HEALTH AND WELFARE DIVISION OF YOUTH SAFETY AND PERMANENCY; PROVIDING A TRANSFER LIMITATION EXEMPTION BETWEEN PROGRAMS FOR THE DEPARTMENT OF HEALTH AND WELFARE DIVISION OF YOUTH SAFETY AND PERMANENCY AND SOUTHWEST IDAHO TREATMENT CENTER PROGRAM FOR FISCAL YEAR 2027; PROVIDING FOR CONDITIONS, LIMITATIONS, AND RESTRICTIONS; PROVIDING A TRANSFER LIMITATION EXEMPTION BETWEEN THE DEPARTMENT OF HEALTH AND WELFARE DIVISION OF YOUTH SAFETY AND PERMANENCY AND SOUTHWEST IDAHO TREATMENT CENTER PROGRAM FOR FISCAL YEAR 2026; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. In addition to any other appropriation provided by law, there is hereby appropriated to the Department of Health and Welfare for the Division of Early Learning and Development the following amounts to be expended according to the designated programs and expense classes from the listed funds for the period July 1, 2026, through June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
I. EARLY LEARNING AND DEVELOPMENT:					
FROM:					
Cooperative Welfare (General)					
Fund				\$600,000	\$600,000
Cooperative Welfare (Federal)					
Fund	<u>\$426,300</u>	<u>\$478,600</u>		<u>3,337,900</u>	<u>4,242,800</u>
TOTAL	\$426,300	\$478,600		\$3,937,900	\$4,842,800

		FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND		
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	PAYMENTS	TOTAL
II. IDAHO CHILD CARE PROGRAM:						
FROM:						
Cooperative Welfare (Federal)						
Fund	\$485,500	\$18,500	\$23,000	\$15,473,000		\$16,000,000
III. SOUTHWEST IDAHO TREATMENT CENTER:						
FROM:						
Cooperative Welfare (Dedicated)						
Fund			\$14,500			\$14,500
Cooperative Welfare (Federal)						
Fund			<u>5,500</u>			<u>5,500</u>
TOTAL			\$20,000			\$20,000
GRAND TOTAL	\$911,800	\$497,100	\$43,000	\$19,410,900		\$20,862,800
SECTION 2. In addition to any other appropriation provided by law,						
there is hereby appropriated to the Department of Health and Welfare for the						
Division of Youth Safety and Permanency the following amounts to be expended						
according to the designated programs and expense classes from the listed						
funds for the period July 1, 2026, through June 30, 2027:						
				FOR		
			FOR	TRUSTEE AND		
			OPERATING	BENEFIT		
			EXPENDITURES	PAYMENTS		TOTAL
I. YOUTH SAFETY & PERMANENCY:						
FROM:						
Cooperative Welfare (General)						
Fund			\$250,000			\$250,000
II. FOSTER & ASSISTANCE PAYMENTS:						
FROM:						
Cooperative Welfare (General)						
Fund				\$431,900		\$431,900
GRAND TOTAL			\$250,000	\$431,900		\$681,900

1 SECTION 3. In addition to any other appropriation provided by law,
2 there is hereby appropriated to the Department of Health and Welfare for the
3 Division of Family and Community Partnerships \$180,000 from the Cooperative
4 Welfare (Federal) Fund to be expended for operating expenditures for the
5 period July 1, 2026, through June 30, 2027, for the purpose of the Kinship
6 Navigation Grant.

7 SECTION 4. FTP AUTHORIZATION. In addition to any other authorization
8 provided by law, the full-time equivalent position authorization provided
9 to the Department of Health and Welfare Division of Early Learning and De-
10 velopment is hereby increased by eight (8.00) for the period July 1, 2026,
11 through June 30, 2027.

12 SECTION 5. REAPPROPRIATION AUTHORITY FOR THE IDAHO CHILD CARE PROGRAM.
13 There is hereby reappropriated to the Department of Health and Welfare Divi-
14 sion of Early Learning and Development any unexpended and unencumbered bal-
15 ances appropriated or reappropriated to the Department of Health and Wel-
16 fare Division of Early Learning and Development for the Idaho Child Care Pro-
17 gram in fiscal year 2026, in an amount not to exceed \$14,000,000, to be used
18 for nonrecurring expenditures for the period July 1, 2026, through June 30,
19 2027. The Office of the State Controller shall confirm the reappropriation
20 amount, by fund, expense class, and program, with the Legislative Services
21 Office prior to processing the reappropriation authorized herein.

22 SECTION 6. REQUIRING A REPORT FOR THE IDAHO HOME VISITING PROGRAM. The
23 Department of Health and Welfare shall submit a report to the Joint Finance-
24 Appropriations Committee by December 31, 2026, identifying outcomes and re-
25 turn on investment for moneys appropriated for the Idaho Home Visiting Pro-
26 gram. The format and content of this report will be determined in consul-
27 tation with the Budget and Policy Analysis Division of the Legislative Ser-
28 vices Office.

29 SECTION 7. IDAHO CHILD CARE PROGRAM CAPACITY. (1) Of the amount appro-
30 priated or reappropriated for year two of the Idaho Child Care Program Capac-
31 ity through the Cooperative Welfare (Federal) Fund, the Department of Health
32 and Welfare shall prioritize: executing contracts, programs and grants to
33 expand the availability of licensed, license-exempt, and unlicensed home-
34 based child care, out-of-school child care programs, or center-based child
35 care. No less than \$9 million shall be reserved for home-based child care,
36 out-of-school child care programs, and underserved children. For the pur-
37 poses of this funding, underserved populations are foster children, chil-
38 dren with disabilities, infants and toddlers, children needing non-tradi-
39 tional hours care, homeless children, and school-aged children. After all
40 qualifying providers are approved, the department may make available to all
41 child care providers unused funding from the set-aside. The funds shall be
42 used to start or expand capacity for such programs and may not be used to sup-
43 plant existing costs.

44 (2) The director of the Department of Health and Welfare shall not allo-
45 cate funds:

46 (a) For construction or major renovations as defined in 45 CFR 98.2;

1 (b) For activities prohibited by 45 CFR 98.56;

2 (c) For minor remodeling;

3 (d) To a school district;

4 (e) To any provider who is currently under investigation by the depart-
5 ment, the attorney general, or a county prosecutor for fraud or the mis-
6 use of public funds; or

7 (f) To any provider who has admitted or was previously found by a court,
8 administrative tribunal, jury, or other neutral factfinder to have com-
9 mitted fraud or misused public funds.

10 (3) For purposes of subsection (2) (e) of this section, a provider shall
11 not be deemed to be under investigation solely on the basis of having re-
12 ceived a civil investigation demand requesting information, where no subse-
13 quent investigative or enforcement action has been taken.

14 SECTION 8. TRANSFER LIMITATION EXEMPTION. Notwithstanding any other
15 provisions of law to the contrary, the Department of Health and Welfare Di-
16 vision of Early Learning and Development may transfer moneys appropriated
17 for personnel costs and trustee and benefit payments pursuant to Section
18 67-3511, Idaho Code, for the period of July 1, 2026, through June 30, 2027.

19 SECTION 9. TRANSFER LIMITATION EXEMPTION. Notwithstanding any other
20 provisions of law to the contrary, the Department of Health and Welfare
21 Division of Youth Safety and Permanency may transfer moneys appropriated
22 for personnel costs and trustee and benefit payments pursuant to Section
23 67-3511, Idaho Code, for the period of July 1, 2026, through June 30, 2027.

24 SECTION 10. TRANSFER LIMITATION EXEMPTION. Notwithstanding any other
25 provisions of law to the contrary, the Department of Health and Welfare Di-
26 vision of Youth Safety and Permanency is hereby exempted from the provision
27 of Section 67-3511(2), Idaho Code, allowing unlimited transfers into the
28 Southwest Idaho Treatment Center Program for all moneys appropriated to the
29 division for the period July 1, 2026, through June 30, 2027.

30 SECTION 11. CONDITIONS, LIMITATIONS, AND RESTRICTIONS. Appropriations
31 made pursuant to this act are subject to the conditions, limitations, and re-
32 strictions specified in this act.

33 SECTION 12. TRANSFER LIMITATION EXEMPTION. Notwithstanding any other
34 provisions of law to the contrary, the Department of Health and Welfare Di-
35 vision of Youth Safety and Permanency is hereby exempted from the provision
36 of Section 67-3511(2), Idaho Code, allowing unlimited transfers into the
37 Southwest Idaho Treatment Center Program for all moneys appropriated to the
38 division for the period July 1, 2025, through June 30, 2026.

39 SECTION 13. An emergency existing therefor, which emergency is hereby
40 declared to exist, Section 12 of this act shall be in full force and effect on
41 and after passage and approval, and Sections 1 through 11 of this act shall be
42 in full force and effect on and after July 1, 2026.